

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Tara T. Hong

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ensuring uniform faithful presidential electors.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>10/30/2025</i>

HOUSE No.

By Representative Hong of Lowell, a petition (subject to Joint Rule 12) of Tara T. Hong relative to presidential electors. Election Laws.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ensuring uniform faithful presidential electors.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The first paragraph of section 8 of chapter 53 of the General Laws, as
2 appearing in the 2022 Official Edition, is hereby amended by inserting after the fourth sentence
3 the following 2 sentences:- For each presidential elector nominated by the state committee of a
4 political party, the state committee shall nominate an alternate elector nominee and shall submit
5 to the state secretary the names of 2 qualified individuals. One of the individuals shall be
6 designated the “elector nominee” and the other shall be designated an “alternate elector
7 nominee”.

8 SECTION 2. Said section 8 of said chapter 53, as so appearing, is hereby further
9 amended by striking out, in lines 24 and 25, the words “a pledge by the presidential elector to
10 vote for the candidate named in the filing” and inserting in place therefore the following words:-
11 the following pledge: “If selected for the position of elector, I agree to serve and to mark my
12 ballots for President and Vice President for the nominees for those offices of the party that

13 nominated me.” The executed pledges shall accompany the submission of the corresponding
14 names to the state secretary.

15 SECTION 3. Said chapter 53 is hereby further amended by inserting after section 8 the
16 following section:-

17 Section 8A. If, after the nomination of a candidate for president or vice president by a
18 political party and before the meeting of presidential electors described in section 148 of chapter
19 54, the candidate dies or withdraws as a candidate for that office in accordance with the rules of
20 the political party, the pledge executed by nominees and alternate nominees for presidential
21 elector under section 8 or by substitute presidential electors under section subsection (b) of
22 section 148A of chapter 54 shall apply to the successor candidate for that office nominated by
23 the political party in accordance with the party’s rules.

24 SECTION 4. Section 118 of chapter 54 of the General Laws, as appearing in the 2024
25 Official Edition, is hereby amended by adding the following paragraph:

26 In submitting the commonwealth’s certificate of ascertainment as required by 3 U.S.C.
27 Section 5, the governor shall certify the commonwealth’s electors and state in the certificate that:
28 (i) the electors shall serve as electors unless a vacancy occurs in the office of elector before the
29 end of the meeting at which elector votes are cast, in which case a substitute elector shall fill the
30 vacancy; and (ii) if a substitute elector is appointed to fill a vacancy, the governor shall submit an
31 amended certificate of ascertainment stating the names on the final list of the commonwealth’s
32 electors.

33 SECTION 5. Said chapter 54 is hereby further amended by inserting after section 148 the
34 following 3 sections:-

Section 148A. (a) If an elector is not present to vote at the required time, the elector position shall be considered vacant. The presiding officer of the electors shall appoint an individual as a substitute elector to fill a vacancy as follows:

(I) if the alternate elector nominee is present to vote, by appointing the alternate elector nominee for the vacant position.

(ii) if the alternate elector nominee for the vacant position is not present to vote, by appointing an elector chosen by lot from among the alternate elector nominees present to vote who were nominated by the same political party or group;

(iii) if the number of alternate elector nominees present to vote is insufficient to fill a vacant position pursuant to clauses (i) and (ii), by appointing any immediately available individual who is qualified to serve as an elector and chosen through nomination by and plurality vote of the remaining electors, including nomination and vote by a single elector if only 1 elector remains;

(iv) if there is a tie between at least 2 nominees for substitute elector in a vote conducted under clause (iii), by appointing an elector chosen by lot from among those nominees.

(b) If all elector positions are vacant and cannot be filled pursuant to subsection (a), the state secretary shall appoint a single presidential elector, with remaining vacant positions to be filled pursuant to clause (iii) or, if necessary, clause (iv) of said subsection (a).

(c) To qualify as a substitute elector under subsection (a), an individual who has not executed the pledge required under section 8 of chapter 53 shall execute the following pledge:

55 “I agree to serve and to mark my ballots for President and Vice President consistent with
56 the pledge of the individual to whose elector position I have succeeded.” Section 148B. (a) At
57 the time designated for elector voting and after all vacant positions have been filled pursuant to
58 section 148A, the state secretary shall provide each elector with a presidential and a vice
59 presidential ballot. The elector shall mark the elector’s

60 presidential and vice-presidential ballots with the elector’s votes for the offices of
61 president and vice president, respectively, along with the elector’s signature and the elector’s
62 legibly printed name.

63 (b) Each elector shall present both completed ballots to the state secretary, who shall
64 examine the ballots and accept as cast all ballots of electors whose votes are consistent with their
65 pledges executed pursuant to section 8 of chapter 53 or subsection (c) of section 148A. The state
66 secretary shall not accept and shall not count either an elector’s presidential or vice presidential
67 ballot if the elector has not marked both ballots or has marked a ballot in violation of the
68 elector’s pledge.

69 (c) An elector who refuses to present a ballot, presents an unmarked ballot, refuses to
70 sign the certificate of vote for president and vice president or presents a ballot marked in
71 violation of the elector’s pledge executed pursuant to section 8 of chapter 53 or subsection (c) of
72 section 148A vacates the office of elector, creating a vacant position to be filled pursuant to
73 section 148A.

74 (d) The state secretary shall distribute ballots to and collect ballots from a substitute
75 elector and repeat the process of examining ballots, declaring and filling vacant positions as

76 required and recording appropriately completed ballots from the substituted electors, until all of
77 this state's electoral votes have been cast and recorded.

78 Section 148C. (a) After the vote of the commonwealth's electors is completed, if the final
79 list of electors differs from any list that the governor previously included on a certificate of
80 ascertainment prepared and transmitted under 3 U.S.C. Section 5, the state secretary of shall
81 immediately prepare an amended certificate of ascertainment consistent with 3 U.S.C. Section 4
82 and transmit it to the governor for the governor's signature.

83 (b) The governor shall immediately deliver the signed amended certificate of
84 ascertainment to the state secretary and a signed duplicate of the original of the amended
85 certificate of ascertainment to all individuals entitled to receive the commonwealth's certificate
86 of ascertainment, indicating that the amended certificate of ascertainment shall be substituted for
87 the certificate of ascertainment previously submitted.

88 (c) The state secretary shall prepare a certificate of vote. The electors on the final list
89 shall sign the certificate. The state secretary shall assist the presidential electors with processing
90 and transmitting the signed certificate with the amended certificate of ascertainment under 3
91 U.S.C. Sections 9, 10 and 11.

92 SECTION 6. This act shall take effect July 1, 2026